



CHAPTER clxi.

An Act to enable the urban district council of St. Anne's-on-the-Sea to acquire the Ashton Gardens and other properties and to confer further powers upon the Council in regard to the supply of gas and electricity and to the local government of the district. A.D. 1914.

[7th August 1914.]

WHEREAS the urban district of St. Anne's-on-the-Sea in the county palatine of Lancaster (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the St. Anne's-on-the-Sea Urban District Council (in this Act referred to as "the Council"):

And whereas there are in the district certain gardens known as Ashton Gardens which might with great advantage to the inhabitants be converted into public gardens and pleasure grounds and it is expedient that the Council should acquire the same for those purposes:

And whereas the St. Anne's-on-the-Sea Gas Company were incorporated by the St. Anne's-on-the-Sea Gas Act 1898 and are supplying gas in the district and it is expedient that the Council should be empowered to purchase the undertaking of that company by agreement:

And whereas the Council were authorised by the St. Anne's-on-the-Sea Electric Lighting Order 1898 to supply and they are now supplying electricity for all purposes throughout the district and it is expedient that the Council and the Lytham Urban District Council (in this Act referred to as "the Lytham Council") should be empowered to enter into and carry out agreements

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A.D. 1914. — for the supply of electrical energy by the Council to the
Lytham Council :

And whereas the district is a health resort and it is expedient to authorise the Council to advertise the attractions of the district :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers drains and sanitary matters within the district and that the powers of the Council in relation to the health local government and improvement of the district should be enlarged as by this Act provided :

And whereas estimates have been prepared by the Council in relation to the following purposes in respect of which they are by this Act authorised to raise money which are as follows :—

For the laying out and improvement of the Ashton Gardens and the erection of a pavilion therein eighteen thousand two hundred pounds :

And whereas the several works mentioned in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient that the financial powers of the Council should be enlarged :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas plans of the lands by this Act authorised to be acquired compulsorily and a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken or used compulsorily for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster which plans and book of reference are in this Act respectively referred to as the deposited plans and book of reference :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872

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and 1903 have been observed and the approval of the Local Government Board has been obtained: A.D. 1914.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the *St. Anne's-on-the-Sea Short title.*
Improvement Act 1914.

2. This Act is divided into Parts as follows (that is to say):— Act divided
into Parts.

- Part I.—Preliminary.
- Part II.—Acquisition of Lands.
- Part III.—Ashton Gardens.
- Part IV.—Supply of Gas.
- Part V.—Motor Omnibuses and Hackney Carriages.
- Part VI.—Supply of Electricity.
- Part VII.—Streets and Buildings.
- Part VIII.—Sewers and Drains.
- Part IX.—Sanitary Provisions.
- Part X.—General Provisions.
- Part XI.—Financial Provisions.
- Part XII.—Miscellaneous.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) are so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act hereby incorporated with this Act. Incorporation of
general
Acts.

4. In this Act unless the subject or context otherwise requires— Interpreta-
tion.

“The Council” means the urban district council of
St. Anne's-on-the-Sea;

“The district” means the urban district of St. Anne's-on-
the-Sea;

“The clerk” “the treasurer” “the medical officer of health”
“the surveyor” and “the inspector of nuisances” mean

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respectively the clerk the treasurer the medical officer of health the surveyor and any inspector of nuisances for the district and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“The district fund” and “general district rate” mean respectively the district fund and general district rate of the district ;

“The Act of 1896” means the Saint Anne's-on-the-Sea Improvement Act 1896 ;

“The gas company” means the St. Anne's-on-the-Sea Gas Company ;

“The undertaking of the gas company” means and includes all the gasworks engines retorts gasholders mains pipes machinery lands buildings plant fixed and movable and all other the real and personal property assets and effects whatsoever and all the rights powers and privileges vested in or belonging to or had or enjoyed by the gas company at the date of the transfer of the undertaking of the gas company to the Council save and except the books and papers relating exclusively to the shareholders and to the constitution of the gas company ;

“The tramways company” means the Blackpool St. Anne's and Lytham Tramways Company Limited ;

“The land company” means the St. Anne's-on-the-Sea Land and Building Company Limited ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying

off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1914.

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the order or precept of the Council;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction;

Words and expressions to which meanings are assigned by the Public Health Acts have the same respective meanings.

5. The limits of this Act for all purposes including the area of supply for electricity purposes shall be the district. Limits of Act.

PART II.

ACQUISITION OF LANDS.

6. Subject to the provisions and for the purposes of this Act the Council may acquire enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference by the numbers one to eleven inclusive. Power to acquire lands.

7. The powers of the Council for the compulsory purchase of lands under this Act shall not be exercised after the expiration of five years from the passing of this Act. Period for compulsory purchase of lands.

8. The Council may for the purposes of this Act in addition to the lands they are authorised to acquire and hold under the powers of this Act from time to time by agreement acquire in Additional lands by agreement.

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A.D. 1914. fee either by purchase or by way of exchange or by way of lease or otherwise any lands within the district not exceeding in the whole ten acres or any easement right or privilege therein thereunder thereover or thereupon (not being an easement right or privilege of water in which persons other than the grantors have an interest) Provided that the Council shall not create or permit a nuisance on any such lands.

PART III.

ASHTON GARDENS.

Power to maintain gardens as recreation grounds.

9. The Council shall maintain the lands and property acquired by them under the powers of this Act and known as the Ashton Gardens (including any additional lands acquired by agreement) as public gardens or pleasure grounds and may exercise all such powers over the same as if the Gardens were a recreation ground vested in the Council under the Public Health Acts.

Agreements for use of portions of pleasure grounds by clubs and associations.

10. The Council may from time to time make agreements with any clubs or associations by which any portion (not exceeding five acres) of any park garden or pleasure ground for the time being belonging to or held by the Council may be secured to such clubs or associations.

Council may provide concert halls &c.

11. The Council may in the Ashton Gardens erect provide maintain furnish and equip and may remove any concert halls winter gardens bandstands and other buildings and may charge for admission to such buildings or any of them or in respect of the use thereof or of any part or parts thereof respectively.

Power to let pavilions or provide entertainments therein.

12.--(1) The Council may in or at any concert halls pavilions conservatories winter gardens bandstands assembly rooms reading rooms or other buildings in the Ashton Gardens provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions and amusements or may let any of the aforesaid buildings for the purpose of such entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for meetings.

(2) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainments exhibition or performance which may from time to time

be provided by the Council or with their sanction in any such place or building as aforesaid. A.D. 1914.

(3) The Council may make byelaws for securing good and orderly conduct during any such concert entertainment exhibition or performance.

(4) The powers conferred by this section shall not (without the consent of the land company) be exercised by the Council in or upon the gardens known as the South Promenade or in or upon a plot of land containing four thousand four hundred and ninety-six and one-third square yards comprised in an underlease dated the twenty-fourth day of November one thousand eight hundred and ninety-nine and made between the land company of the one part and Robert Hugh Irving of the other part and which plot of land is now vested in the Council for the residue of a term of nine hundred and ninety-nine years from the twenty-fifth day of September one thousand eight hundred and ninety-eight or in or upon a plot of land containing seven thousand six hundred and fifty-six and four-ninths square yards comprised in an underlease dated the seventh day of December one thousand nine hundred and three also made between the land company of the one part and the Council (as the baths authority for the district) of the other part.

13. The moneys received by the Council under this Part of this Act shall be carried to the credit of the district fund and the expenses incurred in exercising the powers contained in this Part of this Act and for the maintenance of the said concert halls pavilions conservatories winter gardens bandstands assembly rooms reading rooms baths and other buildings and for the provision and carrying on or the arranging for the provision and carrying on of the entertainments exhibitions and amusements hereinbefore referred to (including the provision of programmes) may be paid out of the district fund. Receipts and expenditure under this Part of Act.

14. The Council may advertise the advantages and amenities of the district as a health resort or watering place by handbooks or leaflets or by the insertion of advertisements in newspapers not published within the district or otherwise with the exception of posters and placards as they may see fit and may in lieu of carrying to the credit of the district fund the profits (if any) received by them in respect of the year ending thirty-first March one thousand nine hundred and fifteen or any subsequent year Council may advertise district.

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A.D. 1914. — from the letting of chairs apply such profits for the purpose of defraying the expenses incurred by them under this section and the Council shall not be entitled to apply any other moneys for such purpose and the sums so expended shall not in any one financial year exceed the amount that could be raised by a rate of one halfpenny in the pound on the rateable value of the district.

PART IV.

SUPPLY OF GAS.

Purchase of
gas company
by agree-
ment.

15. At any time within a period of two years from the passing of this Act the gas company may sell and the Council may with the sanction of the Local Government Board purchase freed and discharged from the debts and liabilities of the gas company the undertaking of the gas company for such price and on such terms and conditions as may be agreed between the gas company and the Council and the date on which the purchase price shall be paid to the gas company is in this Act referred to as "the date of transfer."

Vesting of
undertaking
of company
in Council.

16. (1) As from the date of transfer the undertaking of the gas company all the powers rights duties privileges and obligations conferred upon the company by the St. Anne's-on-the-Sea Gas Act 1898 and other Acts and Orders relating to the undertaking (so far as the same are applicable) shall by virtue of this Act be transferred to and vested in the Council who may maintain and carry on the undertaking and exercise the powers conferred by the said Acts and Orders as fully as if the Council had been named therein instead of the company.

(2) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by two directors or the liquidator of the gas company or by the cashier of the Bank of England shall (unless it be proved that such purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Council of the undertaking of the gas company.

Council not
to manufac-
ture fittings.

17. Notwithstanding anything contained in the St. Anne's-on-the-Sea Gas Act 1898 the Council shall not manufacture meters pipes lamps tubes burners or other gas fittings engines machinery stoves ranges and other apparatus and things for

warming lighting cooking ventilating or producing motive power by gas. A.D. 1914.

18. The receipt in writing of two directors or the liquidator of the gas company for any money paid or to be paid to the gas company by the Council in respect of the purchase of the undertaking of the gas company shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of two directors or the liquidator of the gas company.

Receipt for purchase money.

19. Subject to the provisions of any agreement which may be entered into between the Council and the gas company in reference to the purchase of the undertaking of the gas company all agreements contracts conveyances deeds and other instruments affecting the undertaking of the gas company and in force at the date of transfer shall as from that date be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the gas company the Council had been a party thereto.

Contracts of gas company to be binding on Council.

PART V.

MOTOR OMNIBUSES AND HACKNEY CARRIAGES.

20. The provisions of the Town Police Clauses Acts 1847 and 1889 with regard to hackney carriages are hereby extended so as to enable the Council to make byelaws regulating the routes which may be used by motor omnibuses when plying within or passing through the district.

Routes for motor omnibuses.

21. The provisions of the Town Police Clauses Acts 1847 and 1889 and the byelaws of the Council with respect to hackney carriages shall be as fully applicable in all respects to hackney carriages within the district conveying passengers to or from any

Regulation of hackney carriages plying to and from railway stations.

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A.D. 1914. railway station within the district as if such railway station were a public stand for hackney carriages Provided always that the provisions of this section shall not apply to any vehicle belonging to or used by any railway company for the purpose of carrying passengers and their luggage to or from any of their railway stations or to the drivers or conductors of such vehicles Provided also that nothing in this section shall empower the Council to fix the site of the stand or starting place of any hackney carriage or other vehicle in any railway station or in any yard belonging to a railway company except with the consent of the railway company owning such station or yard.

PART VI.

SUPPLY OF ELECTRICITY.

Power to lay
mains in
private roads.

22. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street in the district laid out but not repairable by the inhabitants at large supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Act 1882 and the Electric Lighting (Clauses) Act 1899 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Attachment
of brackets
and lamps to
buildings.

23. The Council may with the consent of the owner of any building wall or bridge attach to that structure such brackets lamps and apparatus as may be required for lighting any street in the district with electricity :

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power to allow the attachment subject to such terms as to compensation or rent and otherwise as having regard to the character of the building and to the other circumstances of the case they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

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- (2) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the structure but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under proviso (1):
- (3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the structure:
- (4) No brackets lamps and apparatus shall be attached to any bridge or other work of any railway company without the previous consent in writing of that company.

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For the purpose of this section any occupier of a structure whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

24.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of
error in
defective
meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Council.

25. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electrical energy from any person who pays the same within such time of the demand thereof as the Council think fit to prescribe in that behalf and notice to this effect shall be endorsed

Discount on
electric
supply
accounts.

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on every demand note in respect of such charges Provided that the Council shall make the same allowance to all consumers under similar conditions.

Power to
construct
electrical
sub-stations
under streets.

26. The Council may in the area of supply but subject to the provisions of the Electric Lighting Acts 1882 to 1909 and the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient Provided that no sub-station transforming station or other works shall be constructed within a distance of twenty-five yards from any entrance to any railway station nor on any bridge carrying any street or road over any railway except with the consent in writing of the company owning such railway station or railway which consent shall not be unreasonably withheld.

Electrical
fittings.

27.---(1) The Council may subject to the provisions of this section sell let for hire and fix repair and remove upon such terms as may be agreed but shall not manufacture lamps meters electric lines fuses switches lamp-holders motors and other electrical fittings for lighting and motive or other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto and may also provide a showroom and offices.

(2) The Council shall not themselves execute the wiring of private property except between the main of the Council and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the wiring of private property provided that the contractor acts independently of the Council in the execution of the contract The Council shall not sell any such electrical fittings except through a contractor carrying on his business independently of the Council.

(3) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose

possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof. A.D. 1914.
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(4) Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings as to meet the sum properly chargeable for the costs and expenses incurred by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) The sums properly chargeable and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Council for that year:

(c) Every sum charged by the Council to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer.

28. The Council may make byelaws for the purpose of preventing fire in any building or premises supplied with electrical energy by the Council with respect to the nature material workmanship dimensions and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section. Byelaws as to fittings.

29. The Council and the Lytham Council may enter into and fulfil agreements for the supply by the Council of electrical energy to the Lytham Council for any purpose within the urban district of Lytham. Supply of electricity by agreement to Lytham.

PART VII.

STREETS AND BUILDINGS.

30.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel restaurant Means of escape from

A.D. 1914. hospital boarding-house common lodging-house or school) shall
buildings in be provided on the storeys the upper surface of the floor whereof
case of fire. is above twenty feet from the street level with such means of
escape in the case of fire for the persons dwelling or employed
therein or resorting thereto as may be reasonably required under
the circumstances of the case and no such building shall be
occupied until the Council shall have issued a certificate that
the provisions of this section have been complied with in
relation thereto.

(2) The means of escape in case of fire provided in any
building in pursuance of this section shall be maintained in
good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to
interfere with the operation of section 14 (Provision of means of
escape in case of fire) and section 15 (Byelaws for means of
escape from fire) of the Factory and Workshop Act 1901 or of
any Act amending the same.

(4) Any person who shall offend against the provisions of
this section shall be liable to a penalty not exceeding five
pounds and to a daily penalty not exceeding forty shillings.

Further
powers of
making
byelaws.

31. The Council may make byelaws with respect to the
following matters (viz.) :—

(1) The manner in which and the materials with which
grates stoves and fireplaces shall be set in new
buildings or be newly set or reset in existing
buildings the ventilation of gas stoves and the thick-
ness and construction of the walls of all ovens and
furnaces wholly or partially built after the passing
of this Act :

(2) The uniting of buildings and the making and stopping
up of openings in party walls of buildings and the
provision of fire-resisting doors in connection there-
with and as to the occupation of buildings when
united :

(3) Woodwork in external walls of buildings.

Area of
habitable
rooms.

32. Section 23 of the Public Health Acts Amendment Act
1890 in its application in the district shall have effect as if the
words “and floor area” had been inserted after the word
“height” in subsection (1) of that section.

33.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the district shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation such water or other closets and urinals in or in connection with such building as may be sufficient for the accommodation of the workmen employed.

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Sanitary conveniences for workmen engaged on buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

34. The Council may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the district of such dimensions and in such positions as they may from time to time determine.

Street orderly bins.

35. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament.

Saving for railway companies.

PART VIII.

SEWERS AND DRAINS.

36. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council may require enlarged sewer.

37.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner

Council may order houses to be drained by a combined drain.

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A.D. 1914. — as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

38. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Power to lay
drains in
private
streets.

39. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Council to
make all
communica-
tions between
drains and
sewers.

40. If the owner or occupier of any premises desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Reconstruc-
tion of drains.

41.---(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws of the Council relating to the drainage of existing buildings.

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(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1914.

42.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so. Notice of intention to repair drains

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by the clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

43. Where any person has been convicted of causing any drain to be constructed in contravention of section 25 of the Public Health Act 1875 the court may in addition to imposing a penalty under that section order that the drain shall be laid relaid or amended or remade as the case may require in accordance with the provisions of that section and if such person shall not comply with the order within one month after the date thereof the Council may cause the drain in respect of which such conviction has been obtained to be laid relaid or amended or remade as the case may require and may recover from such person in a summary manner as a civil debt the expenses incurred by them in so doing. Power to re-construct drain if laid in contravention of Public Health Act 1875.

44.—(1) If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Improper construction or repair of watercloset or drain.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due

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A.D. 1914. diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful
damage to
drains water-
closets &c.

45. If any person causes any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

PART IX.

SANITARY PROVISIONS.

Persons to
furnish
names of
laundrymen
to whom
clothes &c.
from infected
houses sent.

46.--(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Regulation
dustbins.

47. The Council may by notice in writing require the owner or occupier of any dwelling-house to provide a covered galvanised iron dustbin for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not authorise the Council to require the provision of a dustbin thereunder in any

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case in which a dustbin in use at the passing of this Act is of suitable size and in proper order and condition: A.D. 1914,

Provided also that the Council may in any case they think fit require the provision of a dustbin in lieu of any ashpit in use at the passing of this Act but in such case they shall (except where the medical officer of health or inspector of nuisances shall have certified that owing to wilful neglect on the part of the owner or occupier after due notice to keep the same in proper repair any such ashpit is in such a state as to create a nuisance or be injurious to health) bear and pay such sum towards the expense of providing such dustbin (being not less than one half thereof) as they may consider just and proper according to the circumstances and the remainder shall be borne by the owner or occupier.

48.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school which has been closed by order of the Council with the view of preventing the spread of infectious disease shall permit such child to attend any Sunday school as defined by this Act in the district without having procured from the medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others. Restrictions on attendance of children at Sunday school when infectious disease exists.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

49. The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Council under any such order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the district for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets. Cleansing of milk vessels.

50. For the purposes of section 112 (Restriction of establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be Offensive trades.

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A.D. 1914. — deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

For regu-
lating manu-
facture and
sale of ice
cream.

51.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who—

- (A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or
- (B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or

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stand shall have his name and address legibly painted or in- A.D. 1914.
scribed on such cart barrow or other vehicle or stand and any
person who shall fail to comply with this subsection shall be
liable to a penalty not exceeding forty shillings.

52.—(1) Any officer duly authorised by the Council in that Inspection of
behalf shall at all reasonable times have the same power of premises of
entry into and inspection of the premises of any manufacturer dealer in
or vendor of or merchant or dealer in ice cream or other similar ice cream.
commodity for the purpose of inspecting such premises and
the materials or commodities or articles of food therein as an
officer of the Council would have under section 102 (Power
of entry of local authority) of the Public Health Act 1875 in
the cases therein mentioned.

(2) Any person refusing entry into such premises as afore-
said or obstructing such officer as aforesaid in the execution of
his duty shall be liable to a penalty not exceeding forty shillings
for each offence.

53.—(1) Public notice of the foregoing provisions of this Public notice
Part of this Act shall be given forthwith after the passing of to be given
this Act by advertisement in two newspapers published or of provisions
circulating in the district and by a notice affixed outside the of this Part
town hall and by the distribution of handbills amongst persons of Act.
affected or likely to be affected so far as such persons can
reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements
shall be sufficient evidence that the provisions of this section
have been complied with.

PART X.

GENERAL PROVISIONS.

54.—(1) The Council may on any lands acquired by them Sea-water
for the purposes of this section and on any lands belonging to the supply.
Council and appropriated with the consent of the Local Govern-
ment Board to such purposes erect maintain work and use a
pumping station or pumping stations with all necessary engines
machinery works buildings tanks and conveniences for pumping
water from the sea and may construct lay down and maintain
in and along the seashore and streets in the district such mains
pipes and works as may be necessary or convenient for the con-
veyance or supply of sea water and may supply sea water for

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A.D. 1914. — road watering and other public purposes and also to any authorities companies or persons within the district who may require the same. Provided always that the lands comprised in the underlease dated the twenty-fourth day of November one thousand eight hundred and ninety-nine referred to in the section of this Act the marginal note of which is "Power to let pavilions or provide entertainments therein" shall not be used for a pumping station as aforesaid unless the pumps therein be electrically driven by electricity not generated on the said lands. Provided also that the Council shall not lay more than one main for the purposes of this section in or under the seashore and such main shall not exceed six inches in diameter and such main shall only be laid in along or under the seashore in such position and in accordance with such plans and sections as shall be previously submitted to and reasonably approved of in writing by John Talbot Clifton or his sequels in estate.

(2)---(A) The Council may for the purposes of this section break up any streets in the district and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

(B) Where for the purpose of this section the Council deem it necessary to raise sink or otherwise alter the situation of any gas pipes mains or works laid in or under any street they may by notice in writing require the owner of the pipes mains or works to raise sink or otherwise alter the situation of the same in such manner and within such reasonable time as is specified in the notice (the expenses of or connected with any such alteration to be paid by the Council) and if such notice is not complied with the Council may themselves make the alteration required. The Council shall do as little damage as possible in executing any such alteration and shall make compensation for any damage which may be done in the execution thereof. Provided that no such alteration shall be required or made which will permanently injure any such pipes mains or works or prevent the gas from flowing as freely and conveniently as theretofore :

Provided also that the Council shall not raise sink or otherwise alter or interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the

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Postmaster General except under and subject to the provisions of the said Act. A.D. 1914.

(3) The terms and conditions upon and subject to which the Council may supply sea water under the powers of this section shall be such as the Council shall prescribe or as shall be agreed upon between the Council and the person desiring to be supplied. Provided that such terms and conditions shall be the same to all persons under similar circumstances.

(4) Any receipts from the supply of sea water shall be paid into the district fund and all expenses of and incidental to the provision of such supply shall be paid out of that fund.

55. For the protection of the Lancashire and Yorkshire Railway Company and the London and North Western Railway Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed between the Council and the company apply and have effect (that is to say) :—

For protection of Lancashire and London and North Western Railway Companies.

(1) Whenever under the powers of this Act the Council shall require to construct lay down or maintain any mains pipes apparatus or works upon across or under any railway for the time being belonging to or worked by the company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto they shall give to the engineer of the company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans :

(2) Such works including the making good and repairing of any roads over any such railway and over any bridges and approaches which the company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council shall be laid constructed and executed at the expense of the Council under the superintendence (if the same be given) and to the reasonable satisfaction of the said engineer and according to plans to be previously reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station :

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- (3) When the Council open or break up any road or pavement of any street or other works belonging to or repairable by the company they shall with all convenient speed complete the work for which the same shall have been broken up and reinstate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement and making good and for such further time if any not exceeding twelve months as the soil so broken up shall continue to subside:
- (4) If the Council make unnecessary delay in completing such work or reinstating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the company may after three days' notice to the Council cause such work to be executed or effect such repair and the expense of executing the same shall be repaid to them by the Council:
- (5) The Council shall repay to the company the expense of any temporary works or watching which the company may reasonably consider necessary to provide for the protection of any such railway or the traffic thereon or thereto during the carrying out of the works aforesaid:
- (6) If in the execution or maintenance of the works any injury to any such railway or works or interruption to such traffic shall arise the Council shall make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner hereinafter provided:
- (7) Any difference which may arise between the Council and the company under the provisions of this section shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

Works below
high-water
mark to be

56. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal

lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

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subject to
approval of
Board of
Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

PART XI.

FINANCIAL PROVISIONS.

57.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

Power to
borrow.

(A) For the laying out and improvement of the Ashton Gardens and the erection of a pavilion therein the sum of eighteen thousand two hundred pounds:

(B) For paying the costs charges and expenses of this Act the sum requisite for that purpose.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the district fund and general district rate Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

58. The Council independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow at interest such moneys as may be required for the purchase extension and improvement of and any other purposes of the gas undertaking on the security of the revenue of the gas undertaking and as a collateral security the district fund and the general district rate and for any other of the

Power to
borrow
additional
moneys with
consent of
Local Go-
vernment
Board.

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A.D. 1914. — purposes of this Act on the security of the district fund and general district rate. Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

Certain provisions of Public Health Acts not to apply.

59. In calculating the amount which the Council may borrow under the provisions of the Public Health Acts any sums which the Council may borrow under or for the purposes of this Act shall not be reckoned and the power of the Council of borrowing and reborrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Mode of raising money.

60. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act.

Provisions as to mortgages.

61. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act.

Appointment of receiver.

62.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver:

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

63. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

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 ———
 Periods for
 repayment
 of money
 borrowed.

As to moneys borrowed for the purpose (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within forty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (B) in the said section mentioned within five years from the date of the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

64. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Mode of
 payment off
 of money
 borrowed.

65.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

Sinking
 fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments

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A.D. 1914. of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking

fund to be sufficient for that purpose and if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct. A.D. 1914.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

66. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them or a reserve or renewals fund they may (in addition to any other powers for the time being vested in them) invest such sinking fund or reserve or renewals fund and the interest on the investments of such sinking fund in statutory securities. Power to invest all sinking and reserve funds in statutory securities.

A.D. 1914.

Power to
use sinking
fund instead
of borrowing.

67.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes” and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund:

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:

(C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any

enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly. A.D. 1914.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

68.—(1) The Council shall have power—

Power to
re-borrow.

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Section 49 of the Act of 1896 is hereby repealed.

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Power to use
one form of
mortgage for
all purposes.

69.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be sealed with the common seal of the Council and may be made according to the form contained in the schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the principal sums and interest secured by mortgages granted under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the schedule to this Act or to the like effect.]

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Act, 1914.

(8) There shall be kept at the office of the Council a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee. A.D. 1914.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

70. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund or general district rate. Expenses of executing Act. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

71. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Council to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate. Rates may be amended to accord with new or supplementary valuation list.

72. For the better and more effectually carrying into execution the powers and duties of the Council under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have effect as if the limit thereby imposed on the amount authorised Extension of library rate.

**Ch. clxi.] *St. Anne's-on-the Sea Improvement* [4 & 5 GEO. 5.]
*Act, 1914.***

A.D. 1914. — to be levied by or added to a rate were extended so as not to exceed the sum of one penny and one halfpenny in the pound.

Scheme for
fixing
equated
periods.

73.—(1) The Council may at any time make a scheme for prescribing one or more uniform periods within which all or any loans already contracted or to be contracted by them under any statutory borrowing power shall be discharged and such scheme may provide for the consolidation of any such loans into one loan as if such loans were one loan raised under one statutory borrowing power and may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Application
of money
borrowed.

74. All money borrowed under the provisions of this Act shall be applied only to the purposes for which it is authorised to be borrowed and (except in the case of money borrowed for working capital or for current expenses) to which capital is properly applicable Provided that moneys which may have been

borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the consent of the Local Government Board determine. A.D. 1914.

75. The Council shall keep separate accounts of their receipts and expenditure on capital and revenue account for the purposes of their gas undertaking. Council to keep separate accounts of their undertaking.

76.—(1) The Council shall apply all moneys received by them on revenue account in respect of any of their gas Ashton Gardens and sea-water supply undertakings in manner and in the order following (that is to say):— Application of revenue and deficiency of receipts in respect of undertakings.

(First) In payment of the working and establishment expenses and cost of maintenance of such undertaking:

(Secondly) In payment of the interest on moneys borrowed for the purposes of such undertaking:

(Thirdly) In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of such undertaking:

(Fourthly) In extending and improving (if the Council think fit) any works or otherwise for the purposes of such undertaking:

(Fifthly) In providing a fund for working capital:

(Sixthly) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon such undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from such undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of such undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to

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A.D. 1914.

the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on such undertaking and paying the current expenses connected therewith or at their option shall apply such surplus or any part thereof to the improvement of the district for which they are the local authority or in reduction of the capital moneys borrowed for the purposes of the undertaking.

(2) Any deficiency in the revenue of the respective undertakings of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

Application
of financial
provisions
of Act of
1896.

77. The following sections of the Act of 1896 shall apply to the purposes of this Act as if the same were re-enacted therein (namely) :—

Section 50 (Protection of lender from inquiry) ;

Section 53 (Council not to regard trusts) ;

Section 56 (Inquiries by Local Government Board) ;

Section 57 (Audit of accounts).

Annual re-
turn to Local
Government
Board re-
specting
sinking fund.

78.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon

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which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1914.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

79. The provisions of section 131 (Power to local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Council to subscribe to any hospital infirmary nursing or other institution of a similar character any sum not exceeding in the whole twenty guineas. Power to Council to subscribe to hospitals.

PART XII.

MISCELLANEOUS.

80. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or any contractor or person employed by them are Council not liable for damages save in case of negligence.

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Act, 1914.

A.D. 1914. — required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

Informations
by whom to
be laid.

81. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

As to
notices.

82.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Evidence of
appoint-
ments autho-
rity &c

83. Where in any legal proceedings taken by or on behalf of the Council under this Act or under any general or local Act for time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Confirmation
of byelaws.

84. Subject to the provisions of this Act the provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws (other than byelaws made under

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Part VI. of this Act) made by the Council under the powers A.D. 1914.
of this Act.

85. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

86. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

87. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Damages and
charges to
be settled
by justices.

88. The following sections of the Act of 1896 shall apply to the purposes of this Act as if the same were re-enacted therein (namely):—

Application
of miscel-
laneous pro-
visions of
Act of 1896.

Section 59 (As to appeal);

Section 63 (Penalties to be paid over to treasurer);

Section 64 (Judges &c. not disqualified);

Section 66 (Saving rights of the Duchy of Lancaster);

Section 67 (Powers of Act cumulative).

89. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Determina-
tion of com-
pensation.

90. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever

Persons
acting in
execution of
Act not to be

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Act, 1914.

A.D. 1914. acting under the direction of the Council shall if the matter
personally or thing be done or the contract be entered into bonâ fide for
liable. the purpose of executing this Act subject them or any of them
personally to any action liability claim or demand whatsoever
and any expense incurred by the Council or clerk member
officer or person acting as last aforesaid shall be borne and
repaid out of any of the funds at the disposal of the Council.

Saving for
indictments.

91. Nothing in this Act shall protect any person from
being proceeded against by way of indictment in respect of any
matter by this Act made punishable on summary proceedings
or shall relieve any person in respect of any such matter from
any penal or other consequences to which he would have been
liable if such matter had not been made punishable by this
Act Provided that nothing in this Act shall make a person
liable to be punished more than once for the same offence.

Crown
rights.

92. Nothing in this Act affects prejudicially any estate
right power privilege or exemption of the Crown.

Costs of Act.

93. The costs charges and expenses preliminary to and of
and incidental to the preparing of applying for and obtaining
and passing of this Act including the costs charges and expenses
preliminary to and of and connected with the compliance with
the requirements of the Borough Funds Acts 1872 and 1903 as
taxed by the taxing officer of the House of Lords or of the
House of Commons shall be paid by the Council out of the
district fund and general district rate or out of moneys to be
borrowed by the Council under this Act.

The SCHEDULE referred to in the foregoing Act. A.D. 1914.

FORM OF MORTGAGE.

URBAN DISTRICT OF ST. ANNE'S-ON-THE-SEA.

By virtue of the St. Anne's-on-the-Sea Improvement Act 1914 and of any other powers in that behalf them enabling the urban district council of the urban district of St. Anne's-on-the-Sea (hereinafter called "the Council") in consideration of the sum of _____ pounds paid to the treasurer of the Council by _____ (hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum of _____ pounds so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of _____ shall be fully paid and satisfied with interest for the same at the rate of _____ per centum per annum from the day of _____ one thousand nine hundred and _____ until payment of the said principal sum such interest to be paid half-yearly on the first day of March and the first day of September in each year And it is hereby agreed that the said principal sum secured by these presents shall be repaid at the offices of the Council on the day of _____ one thousand nine hundred and _____ [or at the option of the Council or of the mortgagee by either of the said parties hereto giving to the other six calendar months' notice in writing to that effect]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

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In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within named . consenting the within mentioned time for repayment of the within mentioned principal sum of is hereby extended to the day of one thousand nine hundred and (and the interest to be paid thereon and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum).

Dated this day of one thousand nine hundred and .

FORM OF TRANSFER OF MORTGAGE.

I (the within named of) in consideration of the sum of pounds paid to me by of (hereinafter called "the transferee") do hereby transfer to the transferee (his) executors administrators and assigns (the within written security) (the mortgage number of the revenues of the urban district council of St. Anne's-on-the-Sea bearing date the day of) and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine hundred and .

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